

SENATE No. 897

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to hospital price transparency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>

SENATE No. 897

By Mr. Moore, a petition (accompanied by bill, Senate, No. 897) of Michael O. Moore and James B. Eldridge for legislation relative to hospital price transparency. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 789 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to hospital price transparency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting, after section 51k, the following section:-

3 Section 51M. Hospital Price Transparency

4 (a) Every hospital shall make available to the public on its website a machine-readable
5 file containing a list of all standard charges for all items and services provided by the hospital in
6 accordance with 45 C.F.R. § 180.50, as amended. As used in this section, “hospital,” “items and
7 services,” “machine-readable,” and “standard charge” have the same meaning as set forth in 45
8 C.F.R § 180.20.

9 (b) Every hospital shall, upon request of a patient scheduled to receive an elective
10 procedure, test or service to be performed by the hospital, or upon request of such patients’

11 legally authorized representative, made no less than 3 days in advance of the date on which such
12 elective procedure, test or service is scheduled to be performed, furnish the patient with an
13 estimate of the payment amount for which the participant will be responsible for such elective
14 procedure, test or service. Every hospital shall provide written information about the patient's
15 ability to request an estimate of the payment amount pursuant to this section. Such written
16 information shall be posted conspicuously in public areas of the hospital, including admissions or
17 registration areas, and included on any website maintained by the hospital.

18 (c) The department shall promulgate regulations for the purpose of implementing this act.

19 (d) Notwithstanding any general or special law to the contrary, violations of this act shall
20 be deemed an unfair and deceptive act pursuant to the provisions of chapter 93A, and the
21 attorney general is hereby authorized to bring an action under section 4 of chapter 93A to enforce
22 this provision and to obtain restitution, civil penalties, injunctive relief and any other relief
23 awarded pursuant to chapter 93A.